

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, SEPTEMBER 02, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**U.S. BANK NATIONAL ASSOCIATION v. KETKEO INPRASUETH
Case No. CL25-08941**

Plaintiff's Motion for Summary Judgment or Summary Adjudication

TENTATIVE RULING:

The unopposed motion for summary judgment or adjudication of Plaintiff U.S. BANK NATIONAL ASSOCIATION is GRANTED.

Judgment for Plaintiff for principal in the sum of \$ 16,812.

Plaintiff's memorandum of costs seeks \$870 in filing and motion fees and \$72.61 for service for total costs of \$942.61.

The court will process the lodged proposed judgment. All future dates are vacated.

**CYNTHIA SALAS-MENDOZA v. ELLEN JACKSON
Case No. CU24-00335**

Petitions to Approve Minor's Compromise

TENTATIVE RULING:

The petition to approve the minor's compromise is APPROVED. No appearances are necessary. The court is satisfied with the written submissions.

The court will process the lodged orders forthwith.

Motion for Preliminary Approval of Class Action

TENTATIVE RULING:

The motion for preliminary approval is GRANTED.

Overview of Preliminary Approval of Class Action and PAGA Settlement

Before granting final approval of class settlements, courts grant preliminary approval of the class settlement, grant conditional certification of the class, approve the forms and methods of class notice, and set a final hearing.

Class actions are authorized under Code Civ. Proc., § 382, whenever the question in a case is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court. Certification is a procedure by which the court determines whether a plaintiff is a proper class representative and the action can proceed to trial as a class action. To obtain class certification, the proposed class representative(s) must show (1) an ascertainable class of sufficient size as to justify class action treatment (“numerosity”) and (2) a well-defined community of interest in questions of fact and law. (*Vasquez v. Superior Court* (1971) 4 Cal.3d 800, 809.) The factors the court considers in determining the community of interest element are (1) the predominance of common issues, (2) the typicality of the claims of the proposed class members, and (3) the ability of the proposed class representative to adequately represent the class. (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.)

In determining whether a class settlement is fair, adequate and reasonable, the court considers relevant factors, including: (1) the strength of plaintiffs' case; (2) the risk, expense, complexity and likely duration of further litigation; (3) the risk of maintaining class action status through trial; (4) the amount offered in settlement; (5) the extent of discovery completed and the stage of the proceedings; (6) the experience and views of counsel; (7) the presence of a governmental participant; and (8) the reaction of the class members to the proposed settlement. The list of factors is not exclusive, and the court is free to engage in a balancing and weighing of factors depending on the circumstances of each case.

Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement and to ensure the absence of fraud, overreaching or collusion between the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned. The court uniquely serves as the gatekeeper to protect the interests of the putative class and PAGA group.

The burden is on the proponent of the settlement to show that it is fair and reasonable. (See *Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 244-45.)

Proposed Settlement

This is plaintiff's second effort to secure preliminary approval of a class and PAGA settlement. A prior motion was denied without prejudice on May 15, 2026, as lacking sufficient information.

The proposed class and representative action appear appropriate based upon size and numerosity and a well-defined community of interest with common issues and typical claims. The proposed representatives appear appropriate and share common claims.

This action alleging Labor Code violations involving wage and hour matters, failure to reimburse business expenses and unfair business practices was filed on December 4, 2024. A First-Amended Complaint was filed on March 24, 2025, to add a cause of action under the Private Attorneys General Act ("PAGA"). Defendant filed a response to the First-Amended Complaint on April 23, 2024, in which Defendant denied the allegations. Pursuant to stipulation, Plaintiff filed a Second-Amended Complaint (2AC) on April 8, 2026. The 2AC added a new representative and a new law firm. The parties stipulated Defendant's prior answer would apply.

The parties engaged in mediation with Michael Young, Esq., an experienced wage and hour class action mediator. Plaintiffs engaged expert Jerret Gorlik of Berger Consulting Group to perform a damages analysis.

Defendant PARTNERS PERSONNEL MANAGEMENT SERVICES, LLC. is a staffing agency. Defendant ORBIS RPM, LLC dba CORBI PLASTICS LLS is a corrugated and plastic packaging manufacturer. The 2AC relates to non-exempt workers directly employed by ORBIS or placed to work at ORBIS by PARTNERS PERSONNEL. Of the 73 employees, 27 employees were directly employed by ORBIS in California and 46 were placed by PARTNERS PERSONNEL at Orbis's locations in California in Modesto, Vacaville and Livermore.

Plaintiff seeks approval and certification of a class action and PAGA settlement for 73 putative class members in the gross amount of \$170,000 with an average individual settlement payment of \$891.55. The LWDA PAGA payment is \$6,500. Class members are defined as all persons employed in California as nonexempt employees by ORBIS or placed by PARTNERS PERSONNEL at ORBIS between December 4, 2020, through the date of filing of the 2AC on April 8, 2026. An escalator clause is included.

The Otkupman Law Firm filed a notice of appearance on May 21, 2026. The firm had filed a similar wage and hour action against Defendants in Stanislaus County on April 17, 2025, which will be dismissed upon approval of this settlement.

The court understands that Plaintiff has assessed a total best-case scenario of \$725,469 in liability. Moving papers reflect the following analysis:

	Reasonable Value of Claims	Discount Applied	Risk Reduced Exposure for Settlement Purposes After Discount
Failure to Pay Minimum and/or Overtime	\$92,472	75%	\$23,118
Meal Period Premiums	\$89,312	50%	\$44,656
Rest Period	\$89,312	50%	\$44,656
Wage Statement	\$175,150	75%	\$43,788
Business Expenses	\$6385	50%	\$3193
Pay Final Wages	\$171,295	75%	\$42,824
PAGA Penalty	\$82,650	85%	\$12,398

The moving papers further set forth counsel's methodology and analysis of each claim and reasoning behind the discount for each category of recovery. The gross settlement amount, which was a sum proposed by the mediator, reflects 88.4% of the estimated risk-reduced value.

Settlement Administrator

The fee of up to \$6,750 for Phoenix Class Action Administration is reasonable.

Incentive Payments

Incentive payments to class representatives "must not be disproportionate to the amount of time and energy expended in pursuit of the lawsuit." (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1395.) The court must also consider the "risk to the class representative in commencing suit" and any "notoriety and personal difficulties" he or she encounters as a result of the litigation. (*Id.* at 1394.)

\$5,000 for each representative appears reasonable.

Attorney's Fees and Costs

As to attorneys' fees, calculations using 25%, 30% and 33% of the gross settlement should be included in the final approval moving papers. The court appreciates efforts of class counsel but also wants to ensure that members of the class actually receive benefits.

Costs will not exceed \$25,000.

Other Issues

The motion repeatedly represents that that the class includes all persons employed through the date of final approval. The scope of the class is defined by the 2AC. New claims accruing after the filing of the 2AC cannot be included in this motion and are not before the court. Nor could new claims or new employees be added after Preliminary Approval that were not employed during the specific time period at issue.

The court understands that moving parties anticipate final approval hearing to occur 370 days after preliminary approval. The court reserves **September 30, 2027 at 9:00 a.m. for hearing on the Motion for Final Approval.**

RUSCHELL CALDWELL v. HYUNDAI MOTOR AMERICA **Case No. CU25-00008**

HYUNDAI's Motion to Compel Arbitration

TENTATIVE RULING

Defendant HYUNDAI MOTOR AMERICA ("HYUNDAI") moves to compel arbitration of Plaintiff RUSCHELL CALDWELL's claims for violation of the Song-Beverly Consumer Warranty Act pertaining to his 2022 Genesis GV70 (the "Vehicle"). HYUNDAI states that the Vehicle's owner's handbook contains an arbitration clause, as does the service agreement for the Genesis Connected Services ("GCS") service package in which it says Plaintiff enrolled the Vehicle.

Defendant's motion to compel arbitration is DENIED.

Legal Standard. A party to an arbitration agreement may petition the court to compel arbitration if it alleges the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate. (Code Civ. Proc., § 1281.2.) In ruling on a petition to compel arbitration, the trial court shall order parties to arbitrate if it determines that a valid agreement to arbitrate the controversy exists and the dispute between the parties falls within the scope of the agreement. (*Luxor Cabs, Inc. v. Applied Underwriters Captive Risk Assurance Co.* (2018) 30 Cal.App.5th 970, 977 (*Luxor Cabs*)). Arbitration should be compelled unless it can be said with assurance that the arbitration clause in question is not susceptible to an interpretation covering the asserted dispute. (*EFund Capital Partners v. Pless* (2007) 150 Cal.App.4th 1311, 1320-1321.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence, and the party opposing arbitration bears the burden of proving by a preponderance of the evidence any defense. (*Ibid.*)

Existence of Agreement to Arbitrate; Equitable Estoppel.

A party seeking to compel arbitration “bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence.” (*Engalls v. Permanente Medical Group, Inc.* (1997) 15 Cal. 4th 951, 972.) Here, HYUNDAI fails to meet that burden.

To the extent that HYUNDAI relies on an arbitration provision contained in the Vehicle’s Owner’s Handbook & Warranty Information, HYUNDAI has failed to establish mutual assent or that enforcing an arbitration agreement presented in this manner is not procedurally unconscionable. HYUNDAI does not establish that Plaintiff ever assented to the arbitration provision contained in the handbook, either by signature or by conduct. HYUNDAI contends that Plaintiff accepted the handbook by using the Vehicle or by accepting the benefits under the warranty. HYUNDAI, however, submitted no evidence indicating that Plaintiff was ever provided with the handbook or that he was ever informed of the arbitration provision in the handbook. Plaintiff’s alleged conduct in receiving an Owner’s Manual with the Vehicle does not manifest consent to arbitration.

To form a contract under California law there must be mutual assent. In order to establish mutual assent there must be actual or constructive notice of the terms of agreement. An arbitration term hidden in a 45-page Owner’s Handbook does not establish mutual assent, especially in the circumstance that a purchaser executes a sales contract. Even if an argument for mutual assent could be made based on conduct, enforcing such a term in the manner it was presented would be so procedurally unconscionable as to render the term unenforceable.

The court finds that HYUNDAI has also not proven that the purported GCS service agreement arbitration clause applies. HYUNDAI’s witness declares that Plaintiff enrolled in GCS services on August 8, 2021 and therefore must have agreed to the GCS services arbitration clause. (Declaration of Vijay Rao in Support of Motion at ¶¶ 4-6.) However, HYUNDAI again lacks specific evidence that Plaintiff was in fact presented with the GCS services arbitration clause, was advised of it, or agreed to it. Plaintiff’s concerns about the Vehicle do not appear to be related to any of the GCS services. Even if HYUNDAI’s argument that the conduct associated with activating the GCS services shows acceptance, enforcing the arbitration clause by applying it to the entire vehicle would be procedurally and substantively unconscionable so as to render the term unenforceable.

Plaintiff is not estopped from denying application of either arbitration agreement. In determining whether equitable estoppel prevents a party from denying application of an arbitration agreement “the essential concern is whether plaintiffs are trying to enforce contractual terms beneficial to them while avoiding their own contractual agreement to arbitrate.” (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1136.) However, just as in *Ford Motor Warranty Cases*, the potential liability on warranties HYUNDAI faces here derives from statute, not any contracts between the parties. (*Id.* at p. 1136.)

Conclusion. HYUNDAI's motion to compel arbitration is denied.

MIGUEL ANGEL SANDOVAL FLORES et al. v. INTEGRITY MOVING SOLUTIONS, INC., et al. CU25-09834

Defendants' Motion for Dismissal

TENTATIVE RULING:

It is unclear to the court why plaintiff's counsel and defense counsel did not meet and confer and why this motion was not vacated by defense counsel. Unfortunately, unnecessary motions like these too often clog court calendars creating unnecessary backlogs and wasting resources.

William Richard LaVigne filed this motion to dismiss on behalf of Defendant INTEGRITY MOVING SOLUTIONS, INC. and on behalf of himself on May 26, 2026. Subsequently, an answer was filed by defense counsel on behalf of both defendants on August 5, 2026.

A pro per may not represent a corporation. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.) By doing so, LaVigne engaged in the unlicensed practice of law.

The 7 month delay in serving the complaint is not a basis for dismissal of the action.

The court notes that opposition to the motion was served after an answer had been filed with legal counsel noted on the caption. The opposition was served solely on LaVigne and not on defense counsel. It is unclear to the court why plaintiff's counsel failed to serve the opposition to newly appearing counsel of record.

Defense counsel shall file a substitution of counsel for LaVigne individually forthwith. As LaVigne is not legally permitted to represent a corporation, his "appearance" by filing a motion to dismiss is disallowed.

The motion to dismiss is DENIED.

BEATTIE v. COUNTY OF SOLANO, et al.
Case No. CU26-03723

Motion to Strike Portions of Complaint

TENTATIVE RULING

For injuries caused by a dangerous condition of public property, the only potential basis for liability against the public entity owning or controlling that property is Government Code §§630 and 635. Government Code §840 provides:

Except as provided in this article, a public employee is not liable for injury caused by a condition of public property where such condition exists because of any act or omission of such employee within the scope of his employment. The liability established by this article is subject to any immunity of the public employee provided by statute and is subject to any defenses that would be available to the public employee if he were a private person.

It is only for injuries that occur on property not owned and/or controlled by a public entity that it could face potential liability under Government Code §§815.2 and 820 for the negligence of an employee within the course and scope of employment, if the employee's actions created or increased the danger, on property not owned or controlled by the public entity employer, and were made within the course and scope of employment.

Plaintiff's complaint alleges that the accident occurred "While walking on a pavement section controlled by the Defendants, Plaintiff was injured due to a pavement defect" [Complaint, ¶4]. It further alleges that the subject accident occurred on "the above described public property" [Complaint, ¶5].

The complaint contains no allegations that the subject accident might have been caused by a condition of property not under the control and/or ownership of CITY, but perhaps on which a CITY employee might have negligently done something to cause or increase the risk.

To a degree, Plaintiff appears to concede CITY's arguments. The suit is for dangerous condition of public property associated with a pavement defect. The opposition contends "The sidewalk surface at issue appears to have been painted by someone in the past. If that paving was performed by a City employee or contractor acting within the scope of employment the act constitutes the very "negligent or wrongful act or omission of an employee..." (Opposition, pp. 3-4.) Plaintiff does not explain how negligent painting resulted in injury to plaintiff, if Plaintiff is claiming that the negligent acts occurred on a third party's property, or how such a claim would not be statutorily barred by immunity conferred on individual public employees or CITY's immunity for acts performed by an independent contractor hired by CITY. (Govt. Code, §§ 815.4, 840.)

The court therefore grants CITY's motion to strike the allegations referring to Government Code §§815.2 and 820.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca.gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002